

24SMCV06153 24SMCV06153

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-18

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This is a request to hear the MSJ less than 30 days before trial or continue the trial. The motion is GRANTED and the court will exercise its discretion to hear the motion on the date for which it is currently set, November 5, 2026. That gives plaintiff full statutory notice.

This is one of a number of cases brought where the MSJ is filed at just about the last possible second.

The trial date here is November 30, 2026, meaning that the MSJ must be heard no later than October 30, 2026, if it is to be heard of right. To get a hearing date of October 30, 2026, where service is electronic, the motion must be filed no later than Friday, August 7. (Monday, August 10 would lead to a hearing date of November 3.) The motion here was filed on August 6, 2026.

While cutting it down to the wire, the motion is timely. The earliest day that the motion could be heard with full notice would be October 28, which is more than 30 days before the hearing. (That includes the two court days of additional notice for electronic service.) Because the motion was timely filed, the moving party has the right to have it heard, notwithstanding the court's busy calendar. The court notes that the current date is only 5 court days beyond the minimum, but that does not change the analysis. The court warns parties not to cut it this close. Had there been some technical problem with service, for example, the court would be under no obligation to hear the motion at all.

But safety is not the issue.

There was not a big margin for error, but there was no error.

Accordingly, the moving party has the right to have the

motion heard. The court will therefore

exercise its discretion to hear the motion less than 30 days before trial. The application is GRANTED to that extent.